

TENTATIVE RULINGS

DEPT C12

Judge Layne H. Melzer

Court Reporters: Official court reporters (i.e., court reporters employed by the Court) are **NOT** typically provided for law and motion matters in this department. If a party desires a record of a law and motion proceeding, it will be the party's responsibility to provide a court reporter. Parties must comply with the Court's policy on the use of privately retained court reporters which can be found at:

- [Civil Court Reporter Pooling](#) and, see also the court's website at [Court Reporter Interpreter Services](#) for additional information regarding the availability of court reporters.

Tentative rulings: The court endeavors to post tentative rulings on the court's website in the morning, prior to the afternoon hearing. However, ongoing proceedings such as jury trials may prevent posting by that time. Tentative rulings may not be posted in every case. Please do not call the department for tentative rulings if tentative rulings have not been posted. The court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5212. Please do not call the department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

APPEARANCES: Department C12 conducts non-evidentiary proceedings, such as law and motion, remotely, by Zoom videoconference pursuant to CCP §367.75 and Orange County Local Rule (OCLR) 375. All counsel and self-represented parties appearing for such hearings must check-in online through the Court's civil video appearance website at <https://www.occourts.org/media-relations/civil.html> prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing. Check-in instructions and instructional video are available at <https://www.occourts.org/media-relations/aci.html>. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" ("Appearance Procedures") and "Guidelines for Remote Appearances" ("Guidelines") also available at <https://www.occourts.org/media-relations/aci.html> will be strictly enforced. Parties preferring to appear in-person for law and motion hearings may do so pursuant to CCP §367.75 and OCLR 375.

PUBLIC ACCESS: The courtroom remains open for all evidentiary and non-evidentiary proceedings.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

TENTATIVE RULINGS November 30, 2023

#	Case Name	Tentative
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1	2020-01168103 AFC Cal, LLC vs. Pascual	Plaintiff AFC Cal, LLC Motion to Amend Judgment Continued to January 25, 2024
2	2023-01335355 Ascendant International, Inc. vs. Martinez	Lucy Scott, Ascendant International, Inc. Petition to Confirm Arbitration Award Petitioners Ascendant International, Inc., dba RE/MAX LUXURY PROPERTIES, and Lucy Liu Scott (collectively, "Petitioners") seek an order confirming the arbitration award issued on 6/15/2023 by Irene M. Guimera in the amount of \$64,102.67, which includes arbitration fees in the amount of \$1,475 and attorneys' fees and costs in the amount of \$29,929.51 in favor of Petitioners and against Respondents Adrian Martinez ("Martinez") and Am Sea, LLC ("Am Sea") (collectively, "Respondents"). On 10/26/2023, the hearing on this petition was continued to allow Petitioners to file a proof of service showing the petition and notice of continuance were properly served on Respondents. As the Court previously noted, Petitioners have not shown that Respondents agreed to allow WHGC, PLC to accept service on Respondents' behalf, or that they agreed to electronic service. To the extent Petitioners contend the petition and notice of continuance was properly served on Martinez on November 6, 2023, Petitioners' proof of service did not show the documents were properly served in accordance with Code of Civil Procedure section 415.20, subdivision (a). (ROA No. 27.) It is unclear whether service at the 135 South State College Boulevard address is proper when another representative at the location informed Petitioners' process server that Respondents did not have a physical address at the location, that Respondents were just virtual clients, and that the representative was not authorized to accept service of process. (See, ROA No. 29, Bohm Decl., ¶ 7.) Petitioners offer no explanation as to what changed and why service at that address would be proper. It is also unclear whether the virtual office is for Martinez or Am Sea. In addition, Petitioner filed the 11/13/2023 Application and Order for Publication of Summons <i>after</i> the purported personal service on Martinez and the Application requested an order allowing service by publication on "Adrian Martinez, Am Sea, LLC." (ROA No. 29, Page 1, Section 2.) It appears Petitioners concede service has not been effectuated on either respondent. Petitioners have not shown the petition and notice of continuance were properly served on Respondents in accordance with CCP sections 1290.2 and 1290.4. The hearing on this petition is continued 2/8/2024 at 2:00 PM in Department C12. No later than five court days before the continued hearing date, Petitioners shall file a proof of service showing the petition and notice of continuance were properly served on Respondents. Petitioners shall give notice in accordance with Code of Civil Procedure section 1290.4.

3	2023-01308739 City of La Habra vs. Sanchez	City Of La Habra Petition for Order to Abate Substandard Building and Appointment of Receiver ***OFF CALENDAR***
4	2019-01059637 City of Westminster vs. Mai	Eric P Beatty 1. Motion for Order Approving Receiver's Plan 2. Status Conference No tentative ruling. Receiver should be prepared to explain the breakdown of the estimated costs, which includes tasks that have already been completed and presumably would have been paid through the proceeds of the prior four certificates. (See ROA 243 [Rehabilitation Plan and Cost Estimate at pp. 8-9, § V].) Petitioner shall be prepared to explain its position on the alleged \$250,000 in additional costs that the City is imposing upon the rehabilitation, "which are, in the opinion of the Receiver, of little or no utility," and whether these "requirements" can be waived. (See ROA 248 [Mot. at pp. 3-4].) Further, while the Court is inclined to grant the Receiver's Motion for Order Approving Rehabilitation Plan and Cost Estimate and Authorizing the Receiver to Issue a Fifth Certificate of Indebtedness, the Court is also inclined to continue the hearing, per Respondents' request for additional time to "complete an investigation of the rehabilitation plan" and "potentially develop an alternative plan for remediation." The Court is interested in hearing the parties' views on the alternative of simply creating a vacant lot given the seemingly unreasonable position taken by the City regarding a more neighborhood-friendly rehabilitation plan.
5	2020-01162336 CSE Safeguard Insurance Company vs. Dinh Mai	Status Conference See detailed statement re #4

6	2022-01286479 Claim of Kasid	People Of The State Of California 1. Motion for Default and Default Judgment 2. Status Conference The unopposed motion by Petitioner People of the State of California, for default and default judgment of forfeiture, is granted. The Court finds that Petitioner has made personal service of process on the interested person, Jason Kasid, and served notice of seizure, of this proceeding, the instructions for filing and serving a verified claim, and enclosure of the claim form described in Health & Safety Code section 11488.5. (Health & Saf. Code, § 11488.4, subd. (c), (f).) Petitioner has also proffered evidence that notice of the forfeiture proceeding was published once a week, for three successive weeks in the Orange County Reporter, a newspaper circulated in the county where the subject property was seized. (Health & Saf. Code 11488.4, subd. (e).) The Court finds Petitioner has established a prima facie case in support of its petition for forfeiture. (Health & Saf. Code, § 11488.5, subd. (b)(1).) No claim has been filed. Thus, the Court will enter judgment. Petition is ordered to prepare a proposed judgment for the Court's signature. Petitioner shall give notice of the ruling.
7	2016-00853275 Ford Motor Credit Company LLC vs. Alavicheh	Ford Motor Credit Company LLC Claim of Exemption - Wage Garnishment The hearing on Judgment Debtor Mohammad Alavicheh's claim of exemption from wage garnishment is DENIED. Judgment Debtor seeks to exempt all of his wages from garnishment. While he filed a Financial Statement, he failed to complete the income and asset portion of the form and otherwise support the amount of his expenses. When the matter originally came up for hearing, Judgment Debtor requested a continuance to file an amended Financial Statement and to provide supporting documentation. The court granted the request. However, Judgment Debtor has not filed an amended Financial Statement or any supporting documents. Accordingly, the claim of exemption is DENIED. Judgment Creditor shall give notice of ruling.
8	2023-01305487 Forward Financing, LLC vs. Lotus Garments, Inc.	Forward Financing, LLC Petition to Confirm Arbitration Award Before the court is Petitioner Forward Financing, LLC's Petition to confirm the 1/17/23 Arbitration Award against the remaining Respondent Young Yoon. The Court heard this Petition on 9/21/23 and ruled in relevant part that there is no proof of service for either the Petition or Motion showing that individual Respondent Young Yoon was properly served. Petitioner filed its Petition on 2/1/23 - more than 10 days after issuance of the award on 1/17/23 but within four years. The petition must name as respondents all parties to the arbitration and may name as respondents any other person bound by the

		arbitration award. Code Civ. Proc. § 1285. The petition and notice of hearing must be served at least 10 days before the hearing. Code Civ. Proc. § 1290.2. Where the arbitration agreement does not provide the manner in which service shall be made and the person on whom service is to be made has not previously appeared in the proceeding and has not previously been served in accordance with section 1290.4(a) of the Code of Civil Procedure, the petition and notice of hearing must be served in a manner provided by law for the service of summons in an action. Code Civ. Proc. § 1290.4(b). Service on an individual is made by personal delivery to that person, or someone authorized to accept service of process on his behalf. Code Civ. Proc. § 415.10. Or, if personal service cannot be achieved after reasonable diligence, substitute service may be made by leaving a copy at his home or work with a competent person and mailing a copy to that address. Code Civ. Proc. § 415.20(a). Here, there is still nothing filed showing proper service of the Petition on Mr. Yoon. Thus, the Court continues the hearing to February 8, 2024 at 2PM to permit proper service of the Petition and related papers, including notice of the new hearing date, on Mr. Yoon.
9	2022-01298277 Hunter vs. Long	Richard Hunter Motion to Compel Arbitration Petitioner Richard Hunter's ("Petitioner") petition to confirm the arbitration award in his favor against respondents Jackson Long and North Shore Poke Co., Store 7, LLC (collectively, "Respondents") is continued to January 4, 2024 at 2:00 PM for Petitioner to serve Respondents with the petition and notice of hearing. The petition and notice of hearing must be served at least 10 days before the hearing. Code Civ. Proc. § 1290.2. Where the arbitration agreement does not provide the manner in which service shall be made and the person on whom service is to be made has not previously appeared in the proceeding and has not previously been served in accordance with section 1290.4(a) of the Code of Civil Procedure, for service in California the petition and notice of hearing must be served in a manner provided by law for the service of summons in an action. Code Civ. Proc. § 1290.4(b). The Operating Agreement provides: 11.3 <u>Notices</u>. Except as otherwise provided herein, any notice to be given under this Agreement shall be made in writing and sent by express, registered or certified mail, return receipt requested, postage prepaid, facsimile (in which case a confirmed copy shall be sent on the same date by certified first class mail or express delivery), or commercial delivery service, or personally delivered, addressed as set forth below: If to the Company: North Shore Poke Co Store 7, LLC 11488 South Street Cerritos, CA 90703 Attn.: Managing Member If to any Member, the address of the Member appearing on Exhibit A hereto. [Petition, Ex. 4.B at p. 26 (emphasis added).] Otherwise, a summons may be served on a corporation by personal delivery to the agent for service of process, the president, CEO or "other head of the corporation," vice president, secretary, assistant secretary, treasurer, assistant treasurer, controller or CFO of the corporation. Code Civ. Proc. § 416.10(a), (b). Or substitute service may be made by leaving the summons and complaint with a personal apparently in charge and mailing a copy to the same address. Code Civ. Proc. 415.20(a).

		Service on an individual is made by personal delivery to that person, or someone authorized to accept service of process on his behalf. Code Civ. Proc. § 415.10. Service on an individual can also be made by mailing the summons and complaint with notice of and acknowledgment to be returned by the individual. Code Civ. Proc. §415.30. Proof of service must be filed five court days before the hearing. CRC 3.1300(c). Petitioner filed a proof of service showing the petition was sent by regular U.S. mail to North Shore Poke Co Store 7, LLC ATTN: Managing Member Jackson Long. ROA No. 25. However, the mailing address on the proof of service (1148 South Street) is different than the address in the Operating Agreement (11488 South Street). In addition, the documents served included a Minute Order dated 10/29/2023. There is no Minute Order dated 10/29/2023 in this proceeding, nor would it be likely given the service date of 10/27/2023. "In making service by mail there must be a strict compliance with sections 1012, 1013 and 1013a." <i>Forslund v. Forslund</i> (1964) 225 Cal.App.2d 476, 485. Petitioner's proof of service does not comply with either the Operating Agreement or the Code of Civil Procedure. Petitioner shall serve a copy of the Petition and notice of continuance in accordance with Code of Civil Procedure section 1290.4, as detailed above. Clerk to give notice.
10	2023-01312590 Lopez, Bark & Schulz LLP vs. Ozy Media, Inc.	Lopez, Bark & Schulz LLP Motion to Confirm Arbitration Award Petitioner Lopez, Bark & Schulz, LLP moves to confirm the arbitration award entered against Respondents Ozy Media, Inc. and Carlos Watson. A petition to confirm an arbitration award must be served and filed at least 10 days, and no later than 4 years, after service of the award on the petitioner. (Code Civ. Proc. §§ 1288, 1288.4.) If a petition to confirm is duly filed, and unless the arbitration award is corrected or vacated, "the court shall confirm the award as made." (Code Civ. Proc. § 1286.) The petition shall (1) set forth the substance of the arbitration agreement or attach a copy thereof, (2) set forth the name of the arbitrator(s), and (3) set forth or attach a copy of the award and the written opinion of the arbitrator(s), if any. (Code Civ. Proc. § 1285.4.) "If an award is confirmed, judgment shall be entered in conformity therewith." (Code Civ. Proc. § 1287.4.) The Petition is timely. The award is dated 1/8/23, and the petition was filed and served more than 10 days but less than 4 years later, on 2/21/23. Petitioner has complied with Code Civ. Proc. § 1285.4, by including a copy of the arbitration agreement, stating the name of the arbitrator (Charles Parrett of AAA), and including a copy of the arbitration award. Respondent Ozy Media, Inc. does not oppose the motion. Respondent Carlos Watson filed an opposition, arguing that the court lacks jurisdiction over him as he was never properly served with the Petition. Petitioner concedes in its Reply brief that it did not initially properly serve Respondent due to a misunderstanding. (Lopez Decl. ¶ 2.)

		Since that time, however, Petitioner demonstrates that it has effectuated proper service on Respondent. Specifically, Petitioner sets forth evidence that Respondent's counsel agreed to accept service of documents in this manner by email, and that Petitioner subsequently served the Petition on counsel in this manner. (Lopez Decl., ¶¶ 3-5, Ex. B.) Respondent's counsel never responded that he was not authorized to accept service. (Lopez Decl., ¶ 5.) Pursuant to Code Civ. Proc., § 416.90, "summons may be served on a person not otherwise specified in this article by delivering a copy of the summons and of the complaint to such person or to a person authorized by him to receive service of process." In <i>Warner Bros. Records, Inc. v. Golden West Music Sales</i> (1974) 36 Cal.App.3d 1012, the Court of Appeal reversed the lower court's grant of a motion to quash service of summons, holding that service on the defendants' attorney was sufficient per § 416.90. Like in this matter, the defendants argued that the attorney was not authorized to receive service of process on behalf of them and, which was supported by declarations. (<i>Id.</i> at 1015.) The court held that because counsel was retained as the defendants' attorney, he was their agent. (<i>Id.</i> at 1017.) The court found that the essential factor here is that [counsel's] relationship with the individual defendants may have been sufficiently close and enduring to make it reasonably certain that they would be apprised of the service on [counsel] upon their behalf. (<i>Id.</i> at 1018.) For the same reasons, the Court here finds that Petitioner has shown proper service pursuant to Code Civ. Proc., §§ 416.90 and 1290.4. The Court is thus inclined to grant the motion to confirm the arbitration award, and vacate the upcoming hearing on Respondent's motion to quash, as it will be rendered moot. However, before the Court will enter an order confirming the arbitration award, <u>Petitioner is ordered to file a code-compliant proof of service of the Petition</u> (as is reflected by Ex. B to the Lopez Declaration). Petitioner is ordered to give notice.
11	2014-00738895 South County Bank, N.A. vs. Von Auto Care	South County Bank, N.A. Motion to Enforce Settlement Plaintiff Bank of Southern California, N.A., successor by merger to CalWest Bank, fka South County Bank, N.A.'s motion to enforce settlement agreement is GRANTED. In August of 2014, the parties entered into a binding Stipulation for Entry of Judgment. (Decl. of Hong, Ex. A). Pursuant to the Stipulation, Plaintiff was entitled to judgment against Defendants in the principal amount of \$54,600 with an interest rate of 6% per annum as calculated under the Stipulation. (<i>Id.</i> at ¶¶ 1-6.) In the event payment was not received within seven days of its due date, the Defendants would be in default and Plaintiff would be entitled to the full amount due. (<i>Id.</i> at 9.) Further, in the event a motion to enforce the terms of the Stipulation is made, Plaintiff would be entitled to recover \$54,600, less principal payments made, plus accrued interest, attorney fees of \$1,500 and court costs and which shall provide for an order entitling Plaintiff to the collateral identified in the UCC financing statement filed with the Secretary of State of the State of California on September 27, 2004, filing number 04-7000572328 and recorded with the Orange County recorder on September 30, 2004 as document no. 2004000879322 and with the UCC continuation statements that were filed with the Secretary of State of the State of California on May 14, 2009,

		filing number 09-71965238 and on May 27, 2014 as filing number 14-74132617. (Id. at ¶ 13.) In April and May, 2015, the parties entered into an Amended Stipulation. (Decl. of Hong, Ex. F.) The Amended Stipulation changed the principal balance to \$52,638.66 with a new payment schedule. All other terms of the original Stipulation remained. Defendants defaulted on the Stipulation Agreements by failing to make the monthly payment due on May 20, 2021, and each subsequent payment due thereafter. (Decl. of Hong, ¶ 19.) As of the date of the motion was filed (8/11/23), Defendant has not cured the default. Based upon the foregoing, the motion is granted. Judgment in the amount of \$42,351.12 is entered against Defendants. Plaintiff to give notice.
12	2023-01328650 Swift Financial, LLC vs. West Egg Enterprises, Inc.	Swift Financial, LLC Petition to Confirm Arbitration Award Petitioner Swift Financial, LLC's petition for confirmation of its arbitration award in the amount of \$119,091.84 in its favor and against respondents West Egg Enterprises and Jermaine Massey is granted. The Petition attaches a signed consent to immediate confirmation of this arbitration award in this Court. Thus, the Court will enter Judgment against both properly served Respondents.
13	2023-01301637 In Re: 22145 Pheasant Street, Lake Forest, CA 92630	Petitioner Quality Loan Service Corp Motion for Claims to Surplus Funds The claim by Orange County Department of Child Support Services ("Claimant") for \$9,268.39 of the surplus funds deposited by Petitioner Quality Loan Service Corp. is granted. Claimant showed it recorded an Abstract of Judgment with the Orange County Recorder's Office relating to the child support orders issued on 1/26/2009 and 11/9/2010. Claimant also showed that as of the date of the Trustee's Sale, 11/29/2021, Poema E. Brandom, also known as Poema Smith, owed \$9,268.39 in unpaid child support obligations. Claimant showed Claimant is entitled to \$9,268.39 of the surplus funds. No claims having been asserted to the balance of the \$164,349.34 deposited by Petitioner. The remaining balance of \$155,080.95 are the remaining undistributed surplus proceeds from the Trustee's sale for the property located at 22145 Pheasant Street, Lake Forest, CA 92630. The court orders that the funds will stay on deposit until such time as a claim to the funds is asserted or the funds either escheat to the State pursuant to Code Civ. Proc. § 1519 or are transferred to the court's operating fund under Code Civ. Proc §1502 and Govt. Code §§68084.1. An OSC re Dismissal is set for 12/3/26 at 9:30AM at which time the Court will consider finding the funds subject to escheatment. Clerk to provide notice.

14	2019-01056036 GFRS Equipment Leasing Fund II, LLC, vs. Essence Water, Inc.,	Judgment Creditor GFRS Equipment Leasing Fund II, LLC Motion to Amend Judgment The Court denies Judgment Creditor GFRS Equipment Leasing Fund II, LLC’s Motion to amend the judgment pursuant to Code Civ. Proc. § 187 to add alter ego/successor entity C & B Beverage to the judgment. A. Legal Standard A motion to amend the judgment pursuant to Code Civ. Proc. § 187 gives the trial court the authority to amend a judgment to add additional judgment debtors. The theory underpinning this procedure is that the court is not really amending the judgment, but is merely inserting the correct name of the real defendant. [<i>NEC Electronics Inc. v. Hurt</i> (1989) 208 Cal. App. 3d 772; <i>McClellan v. Northridge Park Townhome Owners Ass’n, Inc.</i>, (2011) 89 Cal. App. 4th 746, 107.] A noticed motion is required to amend a judgment under Code of Civil Procedure section 187. (<i>Wells Fargo Bank, N.A. v. Weinberg</i> (2014) 227 Cal. App. 4th 1, 9.) However, the court is not required to hold an evidentiary hearing. (<i>Highland Springs Conference & Training Center v. City of Banning</i> (2016) 244 Cal. App. 4th 267, 280 [evidence in the form of declarations or deposition testimony will suffice].) In order for the court to grant the motion, two requirements must be met: (1) the new party must be the alter ego of the old party, and (2) in order to satisfy due process concerns, the new party must have controlled the litigation. Absent such control, the alter ego is a true nonparty. (See <i>Minton v. Cavaney</i> (1961) 56 Cal. 2d 576; <i>Jack Farenbaugh & Son v. Belmont Construction, Inc.</i> (1987) 194 Cal. App. 3d 1023.) To prevail on a motion to amend a judgment to add an alter ego, the judgment creditor must show, by a preponderance of the evidence, that (1) the parties to be added as judgment debtors had control of the underlying litigation and were virtually represented in that proceeding, (2) there is such a unity of interest and ownership that the separate personalities of the entity and the owners no longer exist, and (3) an inequitable result will follow if the acts are treated as those of the entity alone. (<i>Highland Springs Conference & Training Center v. City of Banning</i> (2016) 244 Cal. App. 4th 267.) B. Merits Here, Creditor tells the court that Judgment Debtors appeared to have transferred the operation of the business and brand by Essence Water and Joel Gabriel to C & B Beverage LLC, a Nevada limited liability company with its sole registered member Janelle Gabriel – Debtor Joel’s wife. (Jen Dec. ¶¶ 6-9; Exhibits C-G). The operations, brand, and products of Essence Water appears to have been fully transferred to the Third-Party Obligors, which was conveniently formed less than two (2) months after the April 2021 Assignment Order was issued by the Court. (Jen Dec. ¶8; Exhibits E). Similarly, Joel has admitted and affirmed that he is also the Director of Operations in the new closely held corporation, C & B Beverage. (Jen Dec. ¶ 10; Exhibit F). The Court questions the admissibility of some of the evidence provided.
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		However, Creditor has not established by a preponderance of the evidence that the alter ego controlled the litigation (e.g., by deposition testimony, declarations from the judgment creditor, corporate defendant and their attorneys, or testimony from a debtor examination). (<i>See Wollersheim v. Church of Scientology Int'l</i> (1999) 69 Cal.App.4th 1012, 1017.)
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		Because of due process concerns, a default judgment is not subject to this kind of amendment. (<i>See Motores de Mexicali, S.A. v. Sup.Ct.</i> (1958) 51 C2d 172, 175-176; <i>Wolf Metals Inc. v. Rand Pacific Sales, Inc.</i> (2016) 4 CA5th 698, 703-704, 708-709; <i>NEC Electronics, Inc. v. Hurt</i> (1989) 208 CA3d 772, 779.)
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		Here, the Application for entry of sister-state judgment shows that the underling judgment was entered in Arizona by default. (ROA 2). Thus, the Motion is denied.
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		Creditor is ordered to serve notice of this ruling.
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